

ALITO, J., dissenting

enforced Title VII but did not grasp what discrimination “because of . . . sex” unambiguously means. See Part III–C, *infra*.

The Court’s argument is not only arrogant, it is wrong. It fails on its own terms. “Sex,” “sexual orientation,” and “gender identity” are different concepts, as the Court concedes. *Ante*, at 669 (“homosexuality and transgender status are distinct concepts from sex”). And neither “sexual orientation” nor “gender identity” is tied to either of the two biological sexes. See *ante*, at 661 (recognizing that “discrimination on these bases” does not have “some disparate impact on one sex or another”). Both men and women may be attracted to members of the opposite sex, members of the same sex, or members of both sexes.⁸ And individuals who are born with the genes and organs of either biological sex may identify with a different gender.⁹

Using slightly different terms, the Court asserts again and again that discrimination because of sexual orientation or gender identity inherently or necessarily entails discrimination because of sex. See *ante*, at 651–652 (When an employer “fires an individual for being homosexual or transgender,” “[s]ex plays a necessary and undisguisable role in the decision”); *ante*, at 660 (“[I]t is impossible to discriminate against

⁸“*Sexual orientation* refers to a person’s erotic response tendency or sexual attractions, be they directed toward individuals of the same sex (*homosexual*), the other sex (*heterosexual*), or both sexes (*bisexual*).” 1 B. Sadock, V. Sadock, & P. Ruiz, *Comprehensive Textbook of Psychiatry* 2061 (9th ed. 2009); see also *American Heritage Dictionary* 1607 (5th ed. 2011) (defining “sexual orientation” as “[t]he direction of a person’s sexual interest, as towards people of the opposite sex, the same sex, or both sexes”); *Webster’s New College Dictionary* 1036 (3d ed. 2008) (defining “sexual orientation” as “[t]he direction of one’s sexual interest toward members of the same, opposite, or both sexes”).

⁹See n. 6, *supra*; see also Sadock, *supra*, at 2063 (“transgender” refers to “any individual who identifies with and adopts the gender role of a member of the other biological sex”).